

Tentative Rulings
June 23, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

13. *Cerda v. Robledo, et al*, Case No. CIVSB2428710
Motion to be Relieved as Attorney of Record for Plaintiff
6/23/26, 9:00 a.m., S-17

The Court would **CONTINUE** or seek in camera discussion of the facts in support.

Here, attorney Tymkowicz seeks to be relieved as counsel for Plaintiff. The declaration submitted in support only indicates that no information can be provided without breach of the duty of confidentiality. While the Court is cognizant of the protections related to attorney-client relationship, the Court will need *some* sort of averment establishing good cause pursuant to rule 1.16(b) of the Rules of Court. As currently worded, the submitted declaration is insufficient.

15. *Maluto v. Mercedes-Benz USA, LLC*, Case No. CIVSB2606111
Defendant Mercedes-Benz's Motion to Compel Arbitration
6/23/26, 9:00 a.m., S-17

Tentative Rulings

As to Requests for Judicial Notice: The Court would **DENY** Plaintiff's requests as to Exhibits 1-3, as unnecessary.

As to Objections: The Court would **OVERRULE** Plaintiff's evidentiary objections numbers 1-2.

As to the Motion: The Court would **GRANT** and stay all proceedings pending arbitration.

Case Summary

This is a lemon law case. The Complaint alleges that on September 23, 2023, Plaintiff leased the subject vehicle with a warranty from the Defendant. The vehicle developed defects in its electrical, seating, and other systems. Although it was taken for repairs, it was not conformed to its warranty, and Plaintiff filed suit on February 24, 2026, alleging (1) violation of Song-Beverly Act – breach of express warranty; (2) violation of Song-Beverly Act – breach of implied Warranty; and (3) negligent repair.

Statement of the Law

Under Code of Civil Procedure section 1281.2, a party to an arbitration agreement may move to compel arbitration if another party to the agreement refuses to arbitrate, and the court shall order the parties to arbitrate if it determines an agreement to arbitrate exists, unless it determines (a) the right to compel has been waived by the petitioner; (b) grounds exist for revocation of the agreement; or (c) a party to the agreement is also a party to a pending court action or special proceeding, arising out of the same transaction or related transaction, and